

Bow Common Gas Works

in the London Borough of Tower Hamlets

planning application no. PA/19/02379

Strategic planning application stage 1 referral Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008
The proposal Hybrid application – (detail) redevelopment by erection of three buildings up to 13 storeys in height to provide up to 253 homes and ancillary facilities and (outline- all matters reserved) for redevelopment by erection of buildings up to 19 storeys in height to provide up to 1033 homes, up to 3104 sq m retail/workspace/community/cultural uses, together with a new sixth form centre and open space/play space (35% AH overall)
The applicant The applicants are St. William , and the architects is Studio Egret West
Strategic issues Principle of development: The principle of a residential-led redevelopment of the redundant gas works within an emerging opportunity area is strongly supported. Affordable housing: 35% affordable housing (by habitable room) split 70:30 in favour of low-cost rent. 39% affordable housing and 100% low cost rent in phase 1 (detailed element)). The applicant has supplied evidence seeking to establish that extraordinary costs would be incurred in order to bring the gas works forward for development. The proposal could follow the Fast Track route, subject to the GLA's review of evidence demonstrating extraordinary costs, in line with footnote 59 to paragraph 4.5.7 of the Intend to Publish London Plan. Urban design: The layout principles, heights and massing arrangement across the masterplan are broadly supported. It is considered that the less than substantial harm caused through the loss of the Bow Cottage (a non-designated heritage asset), is outweighed by the public benefits of the proposal. Sustainable development: The applicant should provide further detail on the proposed ASHP and Renewable energy provision. The shortfall in CO2 reductions should be met through an offset contribution Transport: Due to the impact that the proposed development will have on public transport a financial contribution towards mitigation measures is required. The scope of off-site highway works needs to be agreed. Car-free development should be secured through condition.
Recommendation That Tower Hamlets Council be advised that while the scheme is generally supported in strategic planning terms, the application does not fully comply with the London Plan, for the reasons set out in paragraph 108 of this report.

Context

1 On 20 November 2019 the Mayor of London received documents from Tower Hamlets Council notifying him of a planning application of potential strategic importance to develop the above site for the above uses. Under the provisions of The Town & Country Planning (Mayor of London) Order 2008 the Mayor must provide the Council with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. The Mayor may also provide other comments. This report sets out information for the Mayor's use in deciding what decision to make.

2 The application is referable under the following Categories of the Schedule to the Order 2008:

- 1A.1 *“Development which comprises or includes the provision of more than 150 houses, flats, or houses and flats.”*
- 1B.1(c) *“Development (other than development which only comprises the provision of houses, flats, or houses and flats) which comprises or includes the erection of a building or buildings outside Central London and with a total floorspace of more than 15,000 square metres”*
- 1C.1(c) *“Development which comprises or includes the erection of a building more than 30 metres high and is outside the City of London.”*

3 Once Tower Hamlets Council has resolved to determine the application, it is required to refer it back to the Mayor for his decision as to whether to direct refusal; take it over for his own determination; or allow the Council to determine it itself.

4 The environmental information for the purposes of the Town and Country Planning (Environmental Impact Assessment) Regulations 2017 has been taken into account in the consideration of this case.

5 The Mayor of London's statement on this case will be made available on the GLA website www.london.gov.uk.

Site description

6 The site currently comprises the Bow Common Gas Works which contains two decommissioned gasholders, an operational pressure reduction system (PRS), the former office and laboratory and the locally listed Bow Cottage. To the north and east of the site is the Poplar Harca Lincoln Estate which predominantly comprises medium density residential development. To the west is the railway viaduct beyond which is Tower Hamlets Cemetery park. To the south is Bow Common Lane, St Paul's Way Trust School and the recently redeveloped Poplar Harca Leopold Estate. Access to the site is via Bow Common Lane to the south or Knapp Road to the north.

7 The site is within the emerging Poplar Riverside Opportunity Area and the Poplar Riverside Housing Zone. The western edge of the site is within the safeguarding zone for Crossrail 2. The site is allocated in the Tower Hamlets Local Plan (Site 2.1), for mixed use development including housing, a primary school and public open space.

8 The site is located on Bow Common Lane. The nearest section of Transport for London Road Network (TLRN) is Burdett Road, located approximately 540m to the south-west (from the centre of the site). Adjoining the site on Bow Common Lane is a pair of bus stops that are served by the 323. Due to the size of the site, bus services within walking distance (640m) varies, with some areas being in walking distance of 5 services whilst other areas are only in walking distance for 2 services. The nearest London Underground station to the site is Mile End Road, just over 1km to the north of the site. The nearest DLR station is Devons Road.

9 Due to the aforementioned public transport connections, the majority of the site has a Public Transport Access Level (PTAL) of 2. There is a small section of the site adjacent to Bow Common Lane which has a PTAL of 6a and PTAL 3.

10 Cycleway 2 extends along Mile End Road, located just over 1km to the north of the site. This route provides a strategic cycle route between Aldgate and Stratford.

Details of the proposal

11 The proposal is in the form of a hybrid planning application, comprised of full and outline elements. Outline planning permission, with all matters reserved, is sought for the demolition of existing buildings and construction of a residential-led mixed-use development in buildings of up to 19 storeys, comprising up to 131,656sq.m. of residential floorspace (up to 1,033 homes), up to 3,104 sq.m. of non-residential space comprising retail (classes A1-4) workspace, community, and cultural uses and residents facilities and up to 4,060 sqm to provide a new sixth form centre and over 14,945 sq.m of publicly accessible open space and play space.

12 A full detailed planning permission is sought for demolition of existing buildings and structures, and 23,286 sqm (GEA) of residential floorspace (up to 253 homes) arranged in three blocks 13 storeys, up to 774 sqm of flexible residential facilities and commercial uses with public open space; public realm works, landscaping and associated works.

Case history

13 A series of pre-planning application meetings have been held between the applicant, Tower Hamlets Council and the Greater London Authority on the above proposal at the above site. An initial meeting was held with the GLA on 21 May 2019, with a follow up meeting held on 13 September 2019. GLA officers concluded that whilst the principle of a high-density mixed-use redevelopment on this brownfield site is supported in principle, issues raised with respect to housing; residential quality; affordable housing; urban design; climate change and transport are fully addressed prior to the submission of any planning application.

Strategic planning issues and relevant policies and guidance

14 For the purposes of Section 38(6) of the Planning and Compulsory Purchase Act 2004, the development plan in force for the area is the Tower Hamlets Local Plan 2031: Managing Growth and Sharing Benefits and the 2016 London Plan (Consolidated with Alterations since 2011).

15 The following are relevant material considerations:

- The National Planning Policy Framework;
- National Planning Practice Guidance; and
- The London Plan intend to publish version (December 2019).

16 The relevant strategic issues and corresponding policies are as follows:

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|--------------------------------|--|
| • Opportunity Areas | <i>London Plan;</i> |
| • Employment | <i>London Plan;</i> |
| • Utilities and industrial use | <i>London Plan;</i> |
| • Social Infrastructure | <i>London Plan;</i> |
| • Housing | <i>London Plan; Housing SPG; Housing Strategy; Shaping Neighbourhoods: Play and Informal Recreation SPG;</i> |
| • Affordable housing | <i>London Plan; Affordable Housing & Viability SPG;</i> |
| • Urban design | <i>London Plan; Character and Context SPG;</i> |
| • Historic Environment | <i>London Plan; Shaping Neighbourhoods: Character and Context SPG</i> |
| • Inclusive access | <i>London Plan; Accessible London SPG;</i> |
| • Sustainable development | <i>London Plan; Sustainable Design and Construction SPG; Mayor's Environment Strategy;</i> |
| • Transport | <i>London Plan; the Mayor's Transport Strategy.</i> |

Principle of development

Opportunity Area and residential use

17 The site is within the emerging Poplar Riverside Opportunity Area, on the north side of the Thames Estuary. Policy SD1 of the Mayor's Intend to Publish London Plan identifies the Poplar Riverside Opportunity Area as having the potential to provide 9,000 new homes and 3,000 new jobs. Opportunity Areas within the Thames Estuary corridor are a priority for regeneration and economic development, with potential for over 250,000 new homes and 200,000 new jobs. The site also lies within the Poplar Riverside Housing Zone which anticipates the creation of a minimum of 6,404 new homes within its lifetime and is intended to increase housing delivery in areas with significant infrastructure challenges and improve links to surrounding areas. Both the Intend to Publish London Plan and Housing Zone designation lend strong support to the provision of housing development in this area.

18 The site is subject to Site Allocation 2.1 under the Tower Hamlets Local Plan. The site allocation identifies the site as suitable to provide a strategic housing development, a secondary school and publicly accessible open space, having regard for the local character and context and the implementation considerations arising from the site's use as an operational gasworks.

19 London Plan Policy 3.3 and Policy H1 of the Intend to Publish London Plan seek to increase the supply of housing in the capital. The proposed scheme would provide up to 1,286 homes, which equates to 34% of the annual monitoring target for Tower

Hamlets of 3,931 set out in the London Plan. Furthermore, the Intend to Publish London Plan Policy H1 Part B further supports the principle of the reuse of decommissioned gasholders to provide new residential development.

20 In light of the policy landscape summarised above, the provision of a residential-red development on this site is supported in principle.

Former utility use

21 The existing gasholders on the site have been decommissioned and planning permission has been issued for the relocation of the Pressure Reduction System (PRS), part of the operational utility infrastructure, to a position outside of the proposed red line boundary. Given this relocation, the remaining site's function for utilities infrastructure is redundant.

22 Bow Common Gas Works is a non-designated industrial site, given its former operation as utilities infrastructure. London Plan policy 4.4 requires boroughs to adopt a rigorous approach to industrial land management to ensure sufficient industrial land is available to meet current and future demand. The release of land from industrial use can be supported where it is part of a managed approach and where the release supports strategic and local planning objectives, particularly to provide more housing, and, in appropriate locations, to provide social infrastructure. This is further reflected in London Plan policy E4 and E7 of the intend to Publish London Plan which seeks a plan-led approach to the release of industrial land.

23 In line with the above, Policy E7C(2) of the Intend to Publish London Plan specifies that mixed use development on non-designated industrial sites, should only be supported where the site has been allocated in an adopted Development Plan Document for residential or mixed use development. The site is allocated in the Tower Hamlets Local Plan (Site 2.1) and as such, in line with the requirements of Policy E7C2, the release of the land from industrial use is acceptable. Whilst the site is recognised as industrial land, the principle of no net loss of floorspace capacity, when assessing the proposals against Policies E4 and E7, does not apply to sites used for utilities infrastructure, as set out in paragraph 6.4.8 of the Intend to Publish London Plan.

Commercial and retail use

21 As noted above, the site is within the emerging Poplar Riverside Opportunity Area which identifies the site as suitable for increased commercial capacity and seeks the creation of new jobs. The development proposes a range of workspace and commercial typologies across the development plots, including flexible workspaces within the refurbished 120 Bow Common Lane building, which has flexibility to accommodate a variety of office based workspace. Workspace provision across the development site provides accommodation spaces for businesses of a range of different types and sizes, small and medium-sized enterprises which is in line with London Plan policy 4.1 and policies E2 and E4 of the Mayor's intend to publish London Plan and is supported.

22 The development provides a limited amount of retail and community/leisure floorspace at ground floor level within residential blocks and units fronting onto the railway. The proposed range of retail and community uses facilitate a well-balanced

mix of commercial activity and local services across the site. Given their limited scale, these additional uses are unlikely to impact on vitality or investment in the surrounding local and district centres.

Sixth Form Centre

23 The proposals include the provision of a sixth form centre within the site. The Site Allocation indicates that the site should deliver a secondary school. However, it is understood that the current proposal is as a result of discussions with the Tower Hamlets Education Authority which has indicated the site is best suited to support the shortfall of Further Education provision within the borough and link with the existing St Paul's Way Trust School. London Plan policy 3.18 and Policies S1 and S3 of the Intend to Publish London Plan support the provision of education facilities in areas of identified need and the co-location of education and residential uses and as such this element of the proposal is strongly supported. In addition to securing the new education facility, wider community access to the school facilities should be secured through the S106 agreement.

Open Space

24 London Plan Policy 7.18 'Protecting open space and addressing deficiency' and Policy G4 of the Intend to Publish London Plan support the provision of new publicly accessible open space. The Site Allocation identifies the open space to be delivered as being approximately 1 hectare and usable for multi-functional leisure and recreation. The proposals include a central green space of 1 hectare and 0.9 hectares of wider publicly accessible open space. Of the total public open space to be delivered by the development, approximately 4,700 sq.m of public open space will be delivered as part of the detailed element of this application (phase 1). The open space proposed across the site is capable of supporting a range of activities, is considered to be a proportionate response and is strongly supported. The applicant should clarify access and management arrangements for the public open space details of which should be secured by condition and planning obligation.

Housing

Unit type	Market Housing		Low-cost Rent		Intermediate (shared ownership)		Total		unit mix
	Unit	Hab room	Unit	Hab room	Unit	Hab room	Unit	Hab room	
Studio	36	36					36	36	14%
One bed	71	142	18	36			89	178	32%
Two bed	78	234	18	64			96	298	42%
Three bed			20	100			20	100	11%
Four bed			12	72			12	72	1%
Total	185	412	68	272			253	684	
			68 units (27% by unit) 272 hab rooms (39% by hab room)						

Table 1: Housing mix for phase 1 (detailed element) of hybrid application

Affordable housing

25 London Plan Policies 3.11 and 3.12 and policy H5 of the Mayor's intend to publish London Plan seek to maximise the delivery of affordable housing, with the Mayor setting a strategic target of 50%. Policy H6 of the Mayor's intend to publish London Plan identifies a minimum threshold of 35% (by habitable room) affordable housing, with an upper threshold of 50% for industrial sites and public land, such as this site. Applications providing the relevant threshold level of affordable housing before public subsidy; with an appropriate tenure split; having explored potential additionality through grant funding; and, meeting all other relevant policy requirements and obligations to the satisfaction of the Mayor and the Local Planning Authority can follow the 'Fast Track Route' whereby the applicant not be required to submit a viability assessment or be subject to a late stage viability review. The GLA preferred tenure mix is outlined in policy H7 of the Intend to publish London Plan as at least 30% low cost rent (social rent or London Affordable Rent), at least 30% intermediate (London Living Rent or shared ownership) and the remaining 40% as determined by the local planning authority. Tower Hamlets' local plan requires development to maximise affordable housing in accordance with the Council's tenure split of 70 % social/affordable rent and 30% intermediate tenures.

26 The applicant proposes to deliver 35% affordable housing by habitable room across the outline application. As demonstrated in Table 1 above, phase 1 would deliver 39% affordable housing by habitable room. Phase 1 seeks to deliver 100% of the affordable component as low-cost rent (composed of 50% London Affordable Rent and 50% Tower Hamlets Living Rent). Whilst the tenure split of Phase 1 is a departure from the Mayor's preferred mix and local policy, the front loading of low-cost rent would assist in addressing the most pressing affordable housing need in the borough and is therefore strongly supported.

27 Footnote 59 to paragraph 4.5.7 of the Intend to Publish London Plan recognises that some surplus utilities sites are subject to substantial decontamination, enabling and remediation costs, and if it is robustly demonstrated that extraordinary decontamination, enabling or remediation costs must be incurred to bring the site forward for development, then a 35% affordable housing threshold could be applied, subject to detailed evidence, including viability evidence, being made available.

28 The applicant has supplied evidence seeking to establish that extraordinary costs would be incurred in order to unlock the site and bring forward development. GLA officers are reviewing the submitted evidence to establish if substantial costs would be incurred relative to the cost to bring the site forward were it in a typical brownfield condition.

29 The affordable housing tenure mix across the entire development comprises; 30% intermediate housing (composed of shared ownership) and 70% Low-cost Rent (comprised of 50% London Affordable Rent and 50% Tower Hamlets Living Rent), as shown in the table above. The Mayor is committed to the delivery of genuinely affordable housing and policy H7 of the Mayor's intend to publish London Plan; the Mayor's Affordable Housing and Viability SPG; and, the Mayor's Affordable Homes Programme 2016-21 Funding Guidance set out the Mayor's preferred affordable housing products. The applicant is advised that the Mayor's preference is for affordable rent products to be secured at London Affordable Rent benchmark levels, and for intermediate products to be secured as affordable to a range of incomes below the upper limit of £90,000 per annum and benchmarked against the monitoring figure in the London Plan Annual Monitoring Report. In addition to this, annual housing costs (including service charges, rent and any interest payment) should be no greater than 40% of net household income. The applicant must provide full details of the affordability of the shared ownership homes. The applicant must also provide full details of the affordability of the Tower Hamlets Living Rent, including target rent levels, and details of any service charges. All affordable housing must be robustly secured in perpetuity, within a Section 106 agreement.

30 Subject to the GLA's review of evidence demonstrating substantial decontamination costs, the proposed development could follow the Fast Track route. An early implementation review must be secured by Section 106 in accordance with Policy H6 of the Intend to Publish London Plan and the Mayor's SPG. A draft of the Section 106 agreement must be agreed with GLA officers prior to any Stage 2 referral. The applicant must investigate the potential for Mayoral grant funding (or any other available public subsidy) with a view to further increasing the affordable housing offer in accordance with policy H6 of the Mayor's intend to publish London Plan and the Mayor's Affordable Housing and Viability SPG.

Residential mix

31 London Plan Policy 3.8 encourages new developments to offer a range of housing choices in terms of mix and size. Policy H10 of the Intend to publish London Plan recognises that a higher proportion of one and two-bedroom units is generally more appropriate in more accessible or urban locations, it also states that guidance on the size of low cost rented homes should be based on evidence of need. The development proposes that 11% will be family sized units, which rises to 31% within the affordable tenure, across the entire development. In strategic planning terms the mix (outlined above) is acceptable, and, GLA officers note the provision of family housing has been appropriately prioritised within the affordable rent component of the mix. The Council should confirm that the scheme housing mix meets the identified local need.

Children's playspace

32 London Plan Policy 3.6 and policy S4 of the Intend to publish London Plan require development proposals to make provisions for play and informal recreation based on the expected child population generated by the scheme. The Mayor's Play and Recreation SPG and policy S4 of the Mayor's intend to publish London Plan expects a minimum of 10 sq.m. per child to be provided in new developments.

33 For Phase 1, the applicant has calculated a playspace provision requirement of 1,213 sq.m. The Phase 1 proposals would meet the 0-5 door step play requirement

identified but would not meet the playspace provision requirement for older children. However, the outline permission would overprovide children's playspace, based on an illustrative housing mix and Phase 1 would deliver 4,049sqm of the 1ha Bow Common public park which would provide further amenity and play provision (including equipped areas for play and nature based play). Accordingly, the development as a whole would exceed requirements and is supported. In accordance with policy S4 of the Mayor's intend to publish London Plan, it must be demonstrated that playspace and equipment within the development is not segregated by tenure. The total playspace provision and a mechanism to secure open access across tenures should be agreed with Tower Hamlets Council and secured by an appropriate planning condition/obligation.

Urban design

34 The design principles of chapter seven in the London Plan and chapter three of the Intend to Publish London Plan outline that all developments should achieve a high standard of design which responds to local character, enhances the public realm and provides architecture of the highest quality. In particular, Policy 7.5 of the London Plan and Policies D1 & D2 of the Intend to Publish London Plan require architecture to make a positive contribution to a coherent public realm, streetscape and wider cityscape, incorporating the highest quality materials and design appropriate to the surrounding context

Density and design review

35 The London Plan and the Intend to publish London Plan seek to optimise housing capacity, taking into account a range of factors including local context, character, public transport provision and good design. Policies D1 and D3 of the Intend to publish London Plan place a greater emphasis on a design-led approach being taken to optimising the development capacity of a particular site and to make the best use of land, whilst also considering the range of factors set out above. The residential density of the proposed development would equate to approximately 350 dwellings per hectare, which triggers the additional design scrutiny requirement set out in Policy D2 of the Intend to publish London Plan. The proposals have been subject to an independent Design Review Panel workshop as well as pre-application meetings with GLA and Tower Hamlets Council design officers. The pre-application process has positively informed the evolution of the proposals. The site is located within an area where the principle of high density development, including tall buildings, is supported. Accordingly, noting the positive evolution of the scheme in response to the above-mentioned pre-application process, and having regard to the urban design and residential quality considerations within this report more generally, the proposed density is supported.

Site Layout

36 The layout principles of the proposed scheme are broadly supported. The scheme has progressed positively and the layout has been amended to create improved legibility, sightlines towards the central green space and stronger pedestrian connections with the wider street network which is welcomed.

37 The applicant is encouraged to continue to work with Poplar Harca to ensure that the alignment of access points along the eastern edge of the site will respond to the emerging Devons Road masterplan and opportunities for securing future legible

and accessible connections into the site from the east are identified and resolved as reserved matters submission.

38 The intention to restrict vehicular access to the periphery of the site to allow the extent of pedestrian focussed public realm and open space to be maximised across the site area is strongly supported. The landscaping strategy and design coding provide sufficient information to demonstrate sizing and delineation of pedestrian routes which is welcomed. There is strong potential to create an active street character along the railway viaduct in tandem with the potential conversion of arches into public facing commercial units. In response to pre-application advice, the design team have revisited the western frontage of the detailed element to increase the amount of active commercial frontage. This, in tandem with the activation of the arches opposite, will contribute towards good levels of street-based activity and passive surveillance. In addition, drawings have been included to illustrate how pedestrian access will be prioritised along the length of the viaduct, with clear physical delineation between vehicles and pedestrians.

39 The significant site constraints have defined the layout and massing arrangements to some degree and the applicant has worked successfully with these constraints to create a series of public spaces and character areas across the site. The Design Code illustrates the extent of primary, secondary and tertiary ground level frontages and how this aligns with the hierarchy of public routes and servicing/vehicular access routes across the site area. Maximum extents of contiguous inactive frontage for each individual building are also defined along with the locations/sizing of residential lobbies and indicative residential floorplans.

40 The retention and restoration of the former gasworks office building on Bow Common Road is welcomed and contributes positively to the quality and character of street frontage while defining a zone of public space between it and the proposed perimeter block. A 3D schematic drawing is included in the Design Code for the Yard Buildings, but this is not very clear and further information on how the language and proportions of the lower portions of the neighbouring perimeter block will respond to the character and scale of the retained building should be set out. Simple elevations would help to communicate this and this should be applied to all proposed building typologies.

41 In accordance with pre-application advice, the Design Code content includes detail on the quality of public realm and landscaping which is welcomed. Precedent images of public spaces of similar size and character to those proposed (for the yard space to the rear of the retained building, the central common space and viaduct zone) should however be included to give a clear idea of the quality and character of spaces to be delivered.

42 The positioning of the Sixth Form Centre building to the south to provide a direct relationship with the playing fields to the south supported. The design code should set out more detail on how the two uses will be designed to co-exist together, with provisions to protect residential privacy and quality of amenity.

Massing, views and architecture

43 The heights and massing arrangement across the masterplan area is broadly supported, subject to confirmation on daylight/sunlight testing and micro-climatic studies. In townscape terms, positioning the tallest building to mark a key entrance into the site from the cemetery, as well as helping to maximise the number of units with views towards the open space to the west is supported.

44 The design code should draw from the townscape views assessment in the detailed element to give a clear indication on what will be expected of future phases in terms of quality of materials, building proportions and detailing of balconies, window reveals and rooflines. The Design Code should provide further detail and visual information on the 'stilts' and undercroft area beneath the tallest building how this can be achieved and secured. A wider views assessment to demonstrate the visual impact of the taller buildings on the character and setting of the wider context should also be included.

Residential quality

45 London Plan Policy 3.5 'Quality and Design of Housing Developments' and policy D6 of the Mayor's intend to publish London Plan promote quality in new housing, with further guidance provided by the Mayor's Housing SPG. In accordance with strategic priorities, it is essential that schemes deliver the highest standard of residential quality, and baseline standards are exceeded wherever possible.

46 Sufficient information is provided to secure high quality residential standards including efficient core to unit ratios, a good proportion of dual aspect overall and provision of private and shared amenity spaces.

47 In line with Policy D13 of the Intend to Publish London Plan, the proposed development should include measures which mitigate against any noise and/or vibration emanating from the adjoining railway line.

Fire Safety

48 In line with policy D12 of the Mayor's intend to publish London Plan, development proposals must achieve the highest standards of fire safety and ensure that they: are designed to incorporate appropriate features which reduce the risk to life in the event of a fire; are constructed in an appropriate way to minimise the risk of fire spread; provide suitable and convenient means of escape for all building users; adopt a robust strategy for evacuation which all building users can have confidence in and provide suitable access and equipment for firefighting which is appropriate for the size and use of the development.

49 The applicant is as such required to submit a Fire Statement by a third party suitably qualified assessor. The statement should detail how the development proposal will function in terms of: the building's construction; the means of escape; access for fire service personnel and equipment, and the ongoing maintenance and monitoring of these how provision will be made within the site to enable fire appliances to gain access to the building. The Fire Statement should be submitted prior to determination.

Heritage

50 The Planning (Listed Buildings and Conservation Areas) Act 1990 sets out the statutory duties for dealing with heritage assets in planning decisions. In relation to listed buildings, all planning decisions should 'should have special regard to the desirability of preserving the building or its setting or any features of special architectural or historic interest which it possesses'.

51 The NPPF states that when considering the impact of the proposal on the significance of the designated heritage asset, great weight should be given to the assets conservation. Significance can be harmed or lost through alteration or destruction of the heritage asset or development within its setting. Significance is the value of the heritage asset because of its heritage interest, which may be archaeological, architectural, artistic or historic, and may derive from a heritage asset's physical presence or its setting. Where a proposed development will lead to 'substantial harm' to or total loss of the significance of a designated heritage asset, local planning authorities should refuse consent, unless it can be demonstrated that the substantial harm or loss is necessary to achieve substantial public benefits that outweigh that harm or loss. Where a development will lead to 'less than substantial harm', the harm should be weighed against the public benefits of the proposal, including securing its optimum viable use.

52 London Plan Policy 7.8, states that development affecting heritage assets should conserve their significance by being sympathetic to their form, scale, materials and architectural detail. Policy HC1 of the Intend to Publish London Plan further specifies that the cumulative impacts from incremental change from development on heritage assets and their setting should be actively managed and that development proposals should avoid harm.

53 Bow Cottage, a locally listed late-19th century villa, is located in the south west corner of the site and is identified by Tower Hamlets as a non-designated heritage asset.

54 The proposed development has the potential for visual impact on the settings of nearby heritage assets. The applicant's Heritage Statement and TVIA set out a number of number proposed views showing the potential impact the development would have. In particular, the Professional Development Centre (Former South Grove School) is a Grade II Listed building located 350m to the west of the site on Ropery Street and the nearest Conservation Areas to the site are the Tower Hamlets Cemetery Conservation area immediately to the north west beyond the railway viaduct; Ropery Street Conservation Area to the west beyond Tower Hamlets Cemetery and Swanton Street Conservation Area Conservation Area located 150m to the north-east.

55 The proposed development would appear to the side of the Former South Grove school in views along Ropery Road. However, whilst the application proposals will be visible in the context of the listed building, it will still be possible to appreciate the key elements of significance of the listed building which will therefore be preserved, as such, no harm would be caused to the significance of the listed building.

56 The development would appear prominently in the background above the roofline of uniform grouping of terraces dating from the mid to late 19th century development of the area, in multiple views within the Ropery Street Conservation

Area and Swanton Road Conservation Areas. Whilst these conservation areas are in an urban context, existing surrounding development is largely not of a scale that is visible in key views identified in the TVIA. As such, the proposed development would introduce a notably new feature into the backdrop of the conservation areas and alter their setting. However, the proposals would not appear visually dominant or detract from the viewers ability to appreciate the designated heritage assets and their setting. Furthermore, the proposal would introduce high quality, contextual architecture, with the distinct form of the towers visible particularly in longer views, which would introduce a positive feature and mitigate the impact. Accordingly, GLA officers consider that the overall visual impact would not be harmful to the setting or significance of the Ropery Street or Swanton Road Conservation Areas.

57 Due to the open nature of parts Tower Hamlets Cemetery the development will be visible in various locations throughout the area. In the open areas of the Cemetery, the development will be clearly visible above the tree line and between breaks in the dense tree cover, it will introduce a notable new urban backdrop of tall buildings. From the north of the conservation area development would be largely screened by mature trees and interposing development although taller element would be visible in some views above the treeline. However, the architectural design is of a high quality and in these closer views the contextual material palette and facade detailing will be clearly legible. Overall, GLA officers consider that the proposed development would not have an adverse effect upon the significance of Tower Hamlets Cemetery Conservation Area, its setting or that of the listed structures and landscape features within it.

Bow Cottage

58 The development would result in the total loss of Bow Cottage and as such would cause harm to the significance of the heritage asset through the loss of historic fabric. However, having regard to the diminished heritage significance of the building through the significant alterations and additions undertaken on the building, the diminished relationship between the building and its historic setting and the building's current state of disrepair, the harm is considered clearly outweighed by the public benefits of the scheme, which include the delivery of up to 1,286 new homes contributing to the boroughs housing delivery targets, the provision of a new public park (up to 1ha) substantial improvements in the quality of the existing environment through the redevelopment of the surplus utility site, improved public realm, optimising the use of the site and, subject to GLA officer's review of submitted evidence, new affordable homes (equating to 35% by habitable room).

59 Given the outcome of the public benefits balance set out above, it is considered that the proposed development would not conflict with the NPPF.

Inclusive access

60 London Plan Policy 7.2 and policy D4 of the Mayor's intend to publish London Plan require that all new development achieves the highest standard of accessible and inclusive design. These policies seek to ensure that all new development can be used easily and with dignity by all.

61 London Plan Policy 3.8 and policy D5 of the Mayor's intend to publish London Plan require that 10% of new housing is delivered as designed to be wheelchair accessible and that the remaining 90% are easily adaptable for residents who are wheelchair users. The scheme proposes that 10% of units across the development, comprising a mix of unit sizes will be delivered as wheelchair user dwellings, the remaining units will be delivered to Building Regulation M4(2) specifications. This is supported and should be secured by condition, along with Building Regulations standards M4(2) and M4(3) in line with London Plan Policy 3.8 and Policy D5 of the Mayor's intend to publish London Plan.

Climate Change

Energy

62 In accordance with the principles of London Plan Policy 5.2 and Policy SI2 of the Mayor's intend to publish London Plan, the applicant has submitted an energy strategy, setting out how the development proposes to reduce carbon dioxide emissions. The strategy comprises a range of passive design features and demand reduction measures. The applicant reports that the development would achieve a 13% domestic and 13% non-domestic emissions reduction through energy efficiency measures.

63 The applicant proposes centralised heat pumps in the form of an ambient loop system served by a central Air Source Heat Pump (ASHP). Further information on the heat pumps are required in order to confirm conformity with London Plan policy requirements. The applicant is not proposing to install any renewable energy technology for the development. The GLA expects all major development proposals to maximise on-site renewable energy generation, where feasible. Further clarity on why no renewable energy technology is proposed should be provided.

64 Based on the submitted energy assessment the on-site domestic and non/domestic exceed the on-site target set within Policy 5.2 of the London Plan for domestic/non-domestic uses. However, it is noted the carbon dioxide savings do not meet the target set by LBTH of a 45% on-site reduction; the applicant should seek to incorporate further on-site measures to address this shortfall. The applicant should ensure that the remaining regulated carbon dioxide emissions will be met through a contribution to the borough's offset fund and should confirm the tonnes carbon dioxide of shortfall and the associated contribution.

Flood Risk

65 The approach to flood risk management for the proposed development complies with London Plan policy 5.12 (and policy SI.12 of the Intend to publish London Plan).

66 The surface water drainage strategy generally satisfies the requirements of London Plan policy 5.13 (and Policy SI13 of the Intend to Publish London Plan). The applicant should provide a completed London Sustainable Drainage Proforma, which shows potential catchment areas and storage volumes for all SuDS measures and not just the attenuation tanks.

67 The proposed development generally meets the requirements of London Plan policy 5.15 (and Policy SI.5 of the Intend to Publish London Plan). The applicant should also consider water harvesting and reuse to reduce consumption of wholesome water across the entire development site. This can be integrated with the surface water drainage system to provide a dual benefit.

Green Infrastructure

68 The landscape strategy and the Design Code document includes analysis of the site's relationship with the wider ecological context. This is supported, particularly given the site's proximity to the Lea Valley, Ackroyd Drive Green Link and Mile End Park. Ecological and active transport connections should continue to inform the design development throughout the reserved matters stage.

69 The detailed element of the application includes a variety of urban greening proposals including a range of trees, hedgerows, herbaceous planting, woodland and woodland edge planting, meadows, species rich lawn and biodiverse roofs. The diversity of landscape proposals is supported. Details of the proposed biodiverse roof should be provided.

70 The Design Code includes Illustrative Softscape and Hardscape Plans, however the application includes no calculation of the Urban Greening Factor. The application should calculate its Urban Greening Factor as set out in Policy G5 of the Intend to Publish London Plan, and aim to achieve the specified target. The UGF should be calculated on the basis of the illustrative scheme and commitment made in the Design Code document to achieving the target of 0.4 at the reserved matters stage.

71 Tower Hamlets Cemetery Park, west of the adjacent railway, is designated as a Site of Metropolitan Importance for Nature Conservation. The Old Railway at Fairfoot Road, located north of the site, is designated as a Site of Local Importance for Nature Conservation. Both of these sites are noted within the Landscape Strategy but not recognised as SINCs. It is important that these sites are protected from adverse effects throughout construction and operation in line with London Plan Policy 7.19 and Policy G6 of the Intend to Publish London Plan. The Ecological chapter of the ES found that there would be a minor adverse effect on the Metropolitan SINC and states that there should be the adoption of a programme to monitor the effects of the Proposed Development on the SINC. This should be implemented.

72 An Arboricultural Impact Assessment has been provided which concludes that no trees will require removal in order to facilitate access for development, however RPAs of two trees will be directly impacted by development proposals. Suitable conditions should be imposed to ensure that these trees are protected in line with the recommendations of the report.

Transport

Trip Generation

73 A multi-modal trip generation assessment for Phase 1 and the site masterplan has been provided for each land use coming forward.

74 The trip generation assessment has been supplemented with further analysis on the impact that the proposed development will have on Mile End London Underground Station. This is welcomed. Similar analysis should be undertaken for DLR stations that are in close proximity to the site to understand the full impact that the proposed development will have on the public transport network.

75 A trip generation assessment has been provided for the Sixth-Form College that is proposed on site. It is noted that should this college not be required, an alternative use could come forward. A worse case scenario assessment for the alternative use should be provided to enable a robust assessment of the impact the proposed development could have on the public transport network.

76 Subject to further information being provided, contributions towards public transport enhancements may be required in line with Policy T4 of the Intend to Publish London Plan.

Public Transport

77 The trip generation estimates that the outline development will result in 110 two-way bus trips during the AM peak hour, of which 21 will occur during Phase 1. Route 323 can be accessed from the bus stop directly adjoining the site, and provides access to Mile End Station and Canning Town Bus Station. Route 323 is at capacity arriving at Mile End, and any additional demand generated from the proposed development will need to be mitigated. In line with Policy T4 of the Intend to Publish London Plan, a S106 contribution of £450,000 towards bus capacity enhancements to mitigate the site specific impacts of this development is required.

78 The proposed development includes the relocation of two bus cages. Due to the adverse impact these works could have on bus operations further engagement with TfL on this matter is therefore required.

79 The gateline assessment concludes that whilst Phase 1 trips can be accommodated within existing gateline capacity of Mile End Station, an additional gate will be required at this station to accommodate the additional demand generated from the proposed development as a whole. This does not take into consideration the cumulative impact of other developments coming forward in the surrounding area, which will also place further demand on this station. In light of this, options for pursuing station improvements at Mile End Station should be discussed with TfL and the Council.

Healthy Streets, vehicle access and vision zero

80 Further work on the Active Travel Zone (ATZ) is required to identify appropriate mitigation measures, in line with Policy T4 of the Intend to Publish London Plan.

81 Highway amendments are proposed to Knapp Road and Bow Common Lane. In line with the Mayor's Vision Zero approach and TfL guidance, a Stage 1 Road Safety Audit should be undertaken for any highway works proposed, prior to determination.

82 Five vehicular crossovers are proposed to serve the development. Where possible, the applicant is encouraged to consolidate the number of vehicle accesses.

83 Swept path analysis demonstrates that while exiting some larger vehicles will encroach on the other side of the carriageway, which is contrary to the Mayor's Vision Zero approach. The design of the vehicle access points should seek to minimise this encroachment.

Walking and cycling

84 Improving the sites connections to the existing and future walking and cycling network is essential to support the quantum of development coming forward and achieving a mode shift at this site. The council is encouraged to secure off-site highway improvements in line with the Healthy Streets agenda

85 The creation of a pedestrian and cycling route through the site which connects Bow Common Lane and Knapp Road is welcomed. Routes through the site which are for both pedestrians and cyclists should be designed with regard to the London Cycle Design Standards (LCDS).

86 It is noted that land has been safeguarded for pedestrian routes to adjoining residential estate and Tower Hamlets Cemetery Park. Comments on the alignment on the access points on the eastern edge of the site can be found in Paragraph 9 of this report. The safeguarding of land and a requirement to pursue the creation of these connections should be secured within the s106 agreement.

87 Two pedestrian-focussed shared surface routes are to be created around the perimeter of the site. These routes will also provide vehicular access to parking and form part of the delivery and servicing routes. Further detail is required on the measures that will be put in place to minimise impact between pedestrians, cyclists and vehicles.

88 Improvements to Bow Common Lane and Knapp Road, with the exception of relocating the bus stops, to create healthy streets are supported in principle.

89 A new cycle route which will connect Hackney and the Isle of Dogs is proposed, a section of which will be located on Burdett Road. A strong connection between this site and the proposed route should be created. This, in part, is achieved through the creation of a crossing opposite Ackroyd Drive.

90 The is in close proximity to a cycle hire docking station on Ackroyd Drive. Whilst the first phase of the development will not result in a significant demand on facilities in proximity of the site, however the full build-out of the site will result in an increase in demand on cycle hire. In light of this, the provision and safeguarding for one average size docking station within the site boundary should be secured in line with Policy T4 of the Intend to Publish London Plan.

Cycle parking

91 The level of cycle parking provision for the residential element of Phase 1 accords with Intend to Publish London Plan standards. A condition should be attached to any planning permission granted for this site which requires subsequent phases to provide cycle parking in line with Intend to Publish London Plan standards.

92 The applicant must demonstrate that there is sufficient space to provide the necessary cycle parking spaces for each non-residential use which could come forward Reserved Matters stage.

Car parking

93 Phase 1 of the proposed development is to be car-free, with the exception of disabled parking provision, which is supported.

94 The residential trip generation assessment for both Phase 1 and for the masterplan has assumed a car-free development at this site. However, the car-free nature of the entire development has not been confirmed with the potential for car parking to be introduced at latter stages. As assumed in the trip generation, and to support achieving the Mayor's Strategic mode shift target for inner London Boroughs, a condition should be attached to the planning permission which requires all development phases to be car-free, with the exception of disabled parking provision.

95 Eight disabled parking spaces are to be provided for the first phase. This equates to three per cent of dwellings having access to a disabled parking space from the outset. A Parking Design and Management Plan should be secured, which outlines how a further seven per cent of residential dwellings can be provided with access to a disabled parking bay, should demand arise. In line with Policy T6 of the Intend to Publish London Plan, access to at least one on or off-street disabled persons parking bay should be provided for all non-residential elements.

96 In line with Policy T6.1 of the Intend to Publish London Plan, at least 20 per cent of parking spaces provided should have active Electric Vehicle Charging Points (EVCP), with passive provision provided for all remaining spaces. The Parking Design and Management Plan should contain details on how passive provision can be activated, should demand arise.

97 One car club space is to be provided as part of Phase 1. To accord with Intend to Publish London Plan policy, this space, and any subsequent car club spaces, should be provided with an active EVCP.

98 The site is located within a Controlled Parking Zone (CPZ). Restricting future residents from the proposed development from applying for a parking permit should be secured through the S106 agreement.

Freight

99 An outline Delivery and Servicing Plan (DSP) has been provided. Clarification is required on the measures that are to be put in place to promote consolidation at this site for all land uses. Furthermore, information is required to demonstrate how delivery and servicing arrangements adhere to the Mayor's Vision Zero approach and will minimise conflict with pedestrians and cyclists. A full DSP

should be secured through condition in line with Policy T7 of the Intend to Publish London Plan.

100 An outline Construction Logistics Plan (CLP) has been provided. Due to the phased nature of the development, it is recommended that a full CLP is provided for each phase to better address relevant construction matters.

101 A full CLP for phase 1 which has been prepared in line with TfL guidance should be secured through condition in line with Policy T7 of the Intend to Publish London Plan. The CLP should contain detail on how the construction of the proposed development will adhere to the Mayor's Vision Zero approach and minimise impact on pedestrian, cyclists and the surrounding public transport network.

Crossrail

102 Tunnels for the Elizabeth Line extend under Bow Common Lane in close proximity to the site. It is understood that the applicant is engaging with the Crossrail team on this matter. Conditions to protect this infrastructure should be attached to any planning permission for this site.

Local planning authority's position

103 Tower Hamlets Council officers are currently assessing the application, a committee date has not been determined.

Legal considerations

104 Under the arrangements set out in Article 4 of the Town and Country Planning (Mayor of London) Order 2008 the Mayor is required to provide the local planning authority with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. Unless notified otherwise by the Mayor, the Council must consult the Mayor again under Article 5 of the Order if it subsequently resolves to make a draft decision on the application, in order that the Mayor may decide whether to allow the draft decision to proceed unchanged, or direct the Council under Article 6 of the Order to refuse the application, or issue a direction under Article 7 of the Order that he is to act as the local planning authority for the purpose of determining the application and any connected application. There is no obligation at this present stage for the Mayor to indicate his intentions regarding a possible direction, and no such decision should be inferred from the Mayor's statement and comments.

Financial considerations

105 There are no financial considerations at this stage.

Conclusion

106 London Plan policies on opportunity areas, industrial land, employment, housing, design, heritage, access, energy, flood risk and transport are relevant to this application. The application is broadly supported in strategic planning terms, but the following matters should be addressed to ensure full compliance with the London Plan and the Mayor's intend to publish London Plan:

- **Principle of development:** The principle of a residential-led redevelopment of the redundant gas facility within an emerging opportunity area is strongly supported
- **Affordable housing:** The development proposes 35% affordable housing by habitable room split 70:30 in favour of low-cost rent. The applicant has supplied evidence seeking to establish that extraordinary costs would be incurred in order to unlock the site and bring forward development. GLA officers are reviewing the submitted evidence. Subject to the GLA's review of evidence demonstrating extraordinary costs, the proposed development could follow the Fast Track route, in line with footnote 59 to paragraph 4.5.7 of the Intend to Publish London Plan.
- **Urban design and heritage:** The layout principles, heights and massing arrangement across the masterplan are broadly supported. Further detail is required within the Design Code and detailed design with relation to the Sixth Form Centre, landmark tall building and ground floor frontages. The less than substantial harm caused through the loss of the Bow Cottage (a non-designated heritage asset), is outweighed by the public benefits of the proposal.
- **Inclusive access:** The scheme provides appropriate levels of accessible accommodation. This is supported and should be secured by condition, along with Building Regulations standards M4(2) and M4(3) in line with London Plan Policy 7.2 and policy D3 of the Mayor's intend to publish London Plan.
- **Sustainable development:** The Energy Hierarchy has been followed as required in London Plan policy 5.2 and policy SI3 of the Mayor's intend to publish London Plan. The applicant should provide further detail on the proposed ASHP and Renewable energy provision. The shortfall in CO₂ reductions should be met through an offset contribution.
- **Transport:** Due to the impact that the proposed development will have on public transport a financial contribution towards mitigation measures is required. The scope of off-site highway works needs to be agreed. Car-free development should be secured through condition.

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